भारतीय गैर न्यायिक

एक सौ रुपये Rs. 100

रु. 100 ONE HUNDRED RUPEES

सत्यमेव जयते

भारत INDIA

INDIA NON JUDICIAL

महाराष्ट्र MAHARASHTRA ◐ 2021 ◐ ZD 692064

ज्या कारणासाठी ज्यांनी मुद्रांक खरेदी केला त्यांनी त्याच कारणासाठी मुद्रांक खरेदी केल्यापासून ६ महिन्यात वापरणे बंधनकारक आहे

अनु.क्र. 13204 दि. 16 NOV 2021 मु.शु.रक्कम-१००

दस्ताचा प्रकार [illegible]

दस्त नोंदणी करणार आहेत का? होय / नाही

मिळकतीचे वर्णन

मुद्रांक विकत घेणाऱ्याचे नांव

पत्ता

दुसऱ्या पक्षकाराचे नांव

हस्ते व्यक्तीचे नांव व पत्ता [illegible]

NIHVA TECHNOLOGIES PVT. LTD. * PUNE *

मुद्रांक विकत घेणाऱ्याची सही

श्री. विश्वरूप रामचंद्र जाधव
परवाना क्र. १२०१९५१
प्लॉट नं. १००, से. नं. १८,
फुलेनगर, चिंचवड, पुणे-१९

LAXMIKANT ANANTRAO KULKARNI
PUNE (MAHARASHTRA)
REGD. No. 10465
Exp. Dt. 28/10/2023

10 NOV 2021

[illegible] मुद्रांक लिपीक
[illegible] पुणे [illegible]

HIGH SEAS SALE AGREEMENT

AGREEMENT NO. NVA /20-21/HSS/SEA -01

This High Seas Sale Agreement is made this, 24TH day of January 2022 between **NIHVA Technologies Pvt Ltd**, a company incorporated under the Companies Act, 1956, and having its Registered office at 8/1 Coromant Hsg. Society sector 27 Nigadi Pradhikaran Pune -411044 (hereinafter referred to as the **Seller** (which expression unless it be repugnant to the meaning and context thereof be deemed to include their successors and assigns) of the ONE PART.

Contd..page 2

For SEZ BIOTECH SERVICES PVT. LTD.

Y.P.S. RAO
DY. GENERAL MANAGER (GROUP - EXIM)

NIHVA TECHNOLOGIES PVT. LTD. * PUNE *

LAXMIKANT ANANTRAO KULKARNI
PUNE (MAHARASHTRA)
REGD. No. 10465
Exp. Dt. 28/10/2023

AND

M/s. **SEZ BIOTECH SERVICES PVT. LTD.** a company incorporated under the Companies Act, 1956 having its Office at **Poonawalla Biotechnology Park, SEZ, Manjari Bk., Tal – Haveli, Dist. Pune - 412 307.**(hereinafter referred to as the **Buyer** which expression shall unless they be repugnant to the meaning or context thereof, mean and include its successors and assigns) of the OTHER PART.

A. The Seller is desirous of selling its products, more particularly described in clause 01 herein below.

B. The Buyer has agreed to purchase the said products on such terms and conditions as mutually agreed and mentioned herein.

NOW THEREFORE THIS AGREEMENT WITNESSETH AND THE FOLLOWING TERMS AND CONDITIONS ARE HEREBY AGREED TO BY AND BETWEEN BOTH THE PARTIES HERE TO:

01. **DETAILS OF PRODUCTS:**

Sr. No	Description	Qty	Unit	Unit Price (Rs.) CIF	Total Value (Rs.) CIF
	Roller shutter Thermo Teck (C) 153718 Double-skinned Teckentrup roller shutter made from PU-foamed steel profiles. Sizes as per below				
1	4215 mm x 7900 mm	2	Nos	616000	1232000
2	4215 mm x 7700 mm	3	Nos	616000	1848000
3	4180 mm x 7900 mm	2	Nos	616000	1232000.
4	4180 mm x 7700 mm	3	Nos	616000	1848000
		10	**Nos**		**6160000/-**

02. SALE PRICE (Rupees sixty one Lac sixty thousand Rupees)

CIF Nhava Sheva
Above price includes sales commission and overhead expenses to
M/s **NIHVA Technologies Pvt Ltd**
Payment to be made in Indian Rupees locally.

For SEZ BIOTECH SERVICES PVT. LTD.

Y.P.S. RAO
DY. GENERAL MANAGER (GROUP - EXIM)

NIHVA TECHNOLOGIES PVT. LTD. PUNE

LAXMIKANT ANANTRAO KULKARNI
PUNE (MAHARASHTRA)
REGD. No. 10465
Exp. Dt. 28/10/2023

03. DELIVERY

By endorsement of **Bill of Lading No BRE00044788, dated 13/01/2022**. and Delivery Order in favour of Buyer.

04. SALE COMPLETION

Sale under this Contract will be considered COMPLETED at the moment of endorsement of Bill of Lading and Delivery Order (DO) as described above at Clause (3) DELIVERY along with the Seller's Invoice showing the sale value and documents transfer letter detailing all the accompanying documents.

05. DUTY

Customs Duty to be paid by the Buyer.

06. SEA FREIGHT

Sea Freight charges till Nhava Sheva Port (destination Sea port) is included in the Sale Price.

07. INSURANCE

Insurance premium **for dispatch from Teckentrup GmbH & Co. KG , to SEZ Biotech service Pvt Ltd Nhava Shava Port, India,** is included in the Sale Price.

08. GST

GST is not applicable for goods transacted for Sale on High Seas Sale basis at present. However, if GST is payable later on this transaction it shall be paid by the Buyer. If required to be paid by the Seller, the Buyers shall reimburse the same to the Seller on Demand.

09. CLEARANCE

OWNERSHIP AND POSSESSION of the merchandise passes to the Buyer upon DELIVERY as described at (03) above, the Buyer shall make his own arrangements for clearing and taking delivery from the Customs/Carrier/Airport Authorities. In case Buyer fails to take delivery of the material for any reason, except on account of reasons caused by the Seller, Buyer shall be held responsible for all Losses and damages and the sale price paid to the Supplier shall stand forfeited. In case any demurrages / detention/penalties charges are payable due to late submission / improper documentation by the Seller, the said expenses are to be borne by the Seller.

For SEZ BIOTECH SERVICES PVT. LTD.

Y.P.S. RAO
DY. GENERAL MANAGER (GROUP - EXIM)

NIHVA TECHNOLOGIES PVT. LTD.
PUNE

NOTARY
LAXMIKANT ANANTRAO KULKARNI
PUNE (MAHARASHTRA)
REGD. No. 10465
Exp. Dt. 28/10/2023
GOVERNMENT OF INDIA

10. PAYMENT The Buyer will make payments to the Seller as per the terms of **Purchase Order No. 5200000858 dated 11/08/2021**

11. POST PROCEDURE The Buyer shall surrender to the Seller the Exchange Control copy of the Bill of Entry, copy of Customs attested Invoice and other documentary proof of having cleared the material from the Customs as are required by the Seller to submit to the Bank and or RBI or any other State or Central Govt. agency.

12. OTHER CONDITIONS Delivery and acceptance of goods.

Any amendments and supplements to this Contract are valid only if they are agreed upon by both the parties in writing and signed by authorized representative of both parties AND ONLY IF EXECUTED BEFORE DELIVERY OF THE GOODS AS DESCRIBED AT (03) ABOVE.

(A) TITLE TO and PHYSICAL POSSESSION OF the goods shall stand transferred to the Buyer on endorsement of Bill of Lading and handing over of the DO duly endorsed in favour of the Buyer.

(B) This sale is subject to force majeure Clause.

(C) After the ownership of the goods is transferred to the Buyer by endorsement of Delivery Order, the Seller will be involved only as a conduit for documents as may be required by such agencies as the bank/s, Indian Customs, RBI. Etc. The Seller is only morally obliged to assist the Buyer in recovering his losses from the Insurance Co. and/or Supplier in the event of any damage during transit, unloading, accidents etc

IN WITNESS WHERE OF BOTH THE PARTIES HERETO HAVE EXECUTED THIS AGREEMENT IN TWO ORIGINALS, THIS DAY AND DATE AS FIRST MENTIONED HEREIN ABOVE.

For SEZ BIOTECH SERVICES PVT. LTD.

Y.P.S. RAO
DY. GENERAL MANAGER (GROUP - EXIM)

NIHIVA TECHNOLOGIES PVT. LTD.
PUNE

SIGNED & DELIVERED:

For **NIHVA Technologies Pvt Ltd.**
Address – Regd off. – 8/1 coromant Hsg Society sector 27 Pradhikaran Nigadi
Pune -411044

NIHVA TECHNOLOGIES PVT. LTD. PUNE

Authorized person signature
Mr Vijay M Tarak (Director)

In the presence of:

1. Amit Kurhade
2. Ashish Marne

SIGNED & DELIVERED:

For **SEZ BIOTECH SERVICES PVT. LTD.**
Developer (Poona Walla Biotechnology Park, SEZ)

For SEZ BIOTECH SERVICES PVT. LTD.

Y.P.S. RAO
DY. GENERAL MANAGER (GROUP - EXIM)

Authorized person Signatory

LAXMIKANT ANANTRAO KULKARNI
PUNE
(MAHARASHTRA)
REGD. No. 10465
Exp. Dt.
28/10/2023

In the presence of:

1. Mayur Chandan
2. Vidya Unnikrishnan

BEFORE ME
LAXMIKANT A. KULKARNI
NOTARY GOVERNMENT OF INDIA
PUNE
31 JAN 202

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